

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

**2024PRGE026571: IN THE MATTER OF DALLAS COBLE
08/18/2026 in Department J6
Account and Report**

Parents bear the primary obligation to support their child and that resort may be had to the child's own resources for his basic needs only if the parents are financially unable to fulfill that obligation themselves. (*Armstrong v. Armstrong* (1976) 15 Cal.3d.942, 943-944)

Probate Code §2420

- (a) Subject to Section 2422, the guardian or conservator shall apply the income from the estate, so far as necessary, to the comfortable and suitable support, maintenance, and education of the ward or conservatee (including care, treatment, and support of a ward or conservatee who is a patient in a state hospital under the jurisdiction of the State Department of State Hospitals or the State Department of Developmental Services) and of those legally entitled to support, maintenance, or education from the ward or conservatee, taking into account the value of the estate and the condition of life of the persons required to be furnished such support, maintenance, or education.
- (b) If the income from the estate is insufficient for the purpose described in subdivision (a), the guardian or conservator may sell or give a security interest in or other lien on any personal property of the estate, or sell or mortgage or give a deed of trust on any real property of the estate, as provided in this part.
- (c) When the amount paid by the guardian or conservator for the purpose described in subdivision (a) satisfies the standard set out in that subdivision, and the payments are supported by proper vouchers or other proof satisfactory to the court, the guardian or conservator shall be allowed credit for such payments when the accounts of the guardian or conservator are settled.
- (d) Nothing in this section requires the guardian or conservator to obtain court authorization before making the payments authorized by this section, but nothing in this section dispenses with the need to obtain any court authorization otherwise required for a particular transaction.
- (e) Nothing in this section precludes the guardian or conservator from seeking court authorization or instructions or approval and confirmation pursuant to Section 2403.

Probate Code §2422

(a) Upon petition of the guardian or conservator, the ward or conservatee, or any other interested person, the court may for good cause order the ward or conservatee to be wholly or partially supported, maintained, or educated out of the estate notwithstanding the existence of a third party legally obligated to provide such support, maintenance, or education. Such order may be made for a limited period of time. If not so limited, it continues in effect until modified or revoked.

(b) Notice of the hearing on the petition shall be given for the period and in the manner provided in Chapter 3 (commencing with Section 1460) of Part 1.

Petitioner states that, prior to his death, the ward's father provided \$400/month in child support and paid for travel to visit him. Petitioner further states that prior to the ward's father's passing the ward was enrolled in private school.

Here petitioner, the guardian of the estate, attempts to state that she has only used the income, not the principal of the estate, to pay for the ward's monthly school tuition (ranging from \$1,389.30 to \$2,174.30), summer camp (\$600), summer camp sports (\$1,000), travel expenses for father's memorial (\$1,604), therapy and camp (\$3,848.75), and medical fees (\$1,308.25).

While the estate will have expenses, such as attorney fees and bond fees, the estate cannot be used for the minor's ordinary maintenance.

The Social Security deposits total \$20,511.00. The expenses that are the obligation of the mother of the ward total \$21,113.90 (monthly school tuition, summer camp, summer camp sports, therapy and camp, and medical fees).

The court orders a surcharge of \$602.90 payable from the guardian to the ward's estate for the amount spent from the estate for expenses which are the obligation of the parent.

The guardian has given the ward an allowance of \$120 and \$100 for Christmas gifts.

Probate Code §2421, provides:

(a) Upon petition of the guardian or conservator or the ward or conservatee, the court may authorize the guardian or conservator to pay to the ward or conservatee out of the estate a reasonable allowance for the personal use of the ward or conservatee. The allowance shall be in such

amount as the court may determine to be for the best interests of the ward or conservatee.

(b) Notice of the hearing on the petition shall be given for the period and in the manner provided in Chapter 3 (commencing with Section 1460) of Part 1.

(c) The guardian or conservator is not required to account for such allowance other than to establish that it has been paid to the ward or conservatee. The funds so paid are subject to the sole control of the ward or conservatee.

If the guardian wants to provide an allowance from the estate to the ward, the guardian is required to petition the court for an order allowing the allowance.

Approve First Account and Report. Approve attorney fees of \$2,785.00 for the period 9/20/24 through 09/19/25. Approve reimbursement of costs to attorney in the amount of \$575.49. Order bond increased to \$156,025.53.

The next accounting for the period of 9/20/25 – 9/19/27 is due on or before 12/22/27 and is set for hearing on 02/08/28 at 9:00 a.m. in Department J6.

The clerk shall give notice.